

Trump admin unlawfully killed health websites related to gender, court rules

U.S. District Judge John D. Bates [ruled on Thursday](#) that the Trump administration's Office of Personnel Management did not comply with all necessary laws when it ordered the Department of Health and Human Services to speedily comply with the president's [executive order](#) on "gender ideology."

On the first day of his term, President Trump passed a deluge of executive orders, including one that ordered government agencies to change the language of government materials that address "gender ideology." This is the administration's way of referring to transgender or non-binary people.

Soon after, agencies within the Department of Health and Human Services (HHS) deleted "hundreds or even thousands" of government healthcare websites, according to Doctors for America (DFA), the nonprofit that filed the lawsuit. This includes websites from the Center for Disease Control (CDC), the National Institute of Health (NIH), and the Food and Drug Administration (FDA), among others.

Given a 48-hour timeline to comply with the order, many agencies opted for what Judge Bates describes as "the most extreme approach: fully removing any webpage with any offending language, no matter how minimal, without any stated intent to modify and republish the webpage."

The government took down websites with, the plaintiffs argued, vital health information on topics like youth mental health, vaping, HIV testing, opioid abuse, contraception, osteoporosis, menopause, sexually transmitted infections, pregnancy, and instructions for clinicians on how to prescribe and administer FDA-approved drugs.

To be clear, the judge did not rule on the administration's ideology, but rather in how these agencies went about deleting the sites and datasets. The plaintiffs argued that the speed and decision-making of information removal violated, for instance, the Administrative Procedure Act law.

"The government is free to say what it wants, including about 'gender ideology,'" Judge Bates wrote. "But in taking action, it must abide by the bounds of the authority and the procedures that Congress has prescribed ... and the government failed to do so here."

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Not only were these websites removed for Americans seeking reliable health resources, but also, DFA members were blocked from accessing data and reference materials that they long relied on in their daily work, the court documents said. Some doctors testified that the removal of these resources impacted how efficiently they were able to provide care to their patients.

One doctor who works in “one of the most underserved high schools in Chicago” said that she was unable to use CDC resources to help her manage a chlamydia outbreak at the school. Other doctors reported that it became more difficult to provide guidance about STI prevention and contraception to patients with complex medical histories, whose cases may require additional research from clinicians.

Judge Bates ruled that the websites that the plaintiffs’ doctors rely on must be restored if those sites have been taken down or substantially modified. However, it’s yet to be seen how much of this health information will be restored, as some federal judges have claimed that this administration can be [uncooperative](#) with their rulings.

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